

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                                      |                               |                                                       |                                    |                                 |
|---------------------------------------------------|--------------------------------------------------------------------------------------|-------------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Daniel Giansante                 | Team:<br>Team # 5                                                                    | CCRB Case #:<br>201404531     | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                                                      |                               | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 05/07/2014 1:40 AM | Location of Incident:<br>Fourth Avenue and Bergen Street; 78th Precinct stationhouse | 18 Mo. SOL<br>11/7/2015       | Precinct:<br>78                                       |                                    |                                 |
| Date/Time CV Reported<br>Fri, 05/09/2014 1:02 PM  | CV Reported At:<br>CCRB                                                              | How CV Reported:<br>In-person | Date/Time Received at CCRB<br>Fri, 05/09/2014 1:02 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. SGT Juan Montes    | 04494  | 940482 | 078 PCT |
| 2. POM Angel Thevenin | 17197  | 949724 | 078 PCT |

| Witness Officer(s)    | Shield No | Tax No | Cmd Name |
|-----------------------|-----------|--------|----------|
| 1. POM Richard Reilly | 06506     | 949534 | 078 PCT  |
| 2. SGT Richard Assing | 495       | 946754 | 078 PCT  |

| Officer(s)             | Allegation                                                                                                                | Investigator Recommendation |
|------------------------|---------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Angel Thevenin | Abuse: At 4th Avenue and Bergen Street in Brooklyn, PO Angel Thevenin frisked § 87(2)(b)                                  | A . Substantiated           |
| B . SGT Juan Montes    | Abuse: At 4th Avenue and Bergen Street in Brooklyn, Sgt. Juan Montes supervised the frisk of § 87(2)(b)                   | B . Substantiated           |
| C . SGT Juan Montes    | Abuse: At the 78th Precinct stationhouse, Sgt. Juan Montes refused to provide his name and/or shield number to § 87(2)(b) | C . Unsubstantiated         |
| D . SGT Juan Montes    | Abuse: At the 78th Precinct stationhouse, Sgt. Juan Montes strip-searched § 87(2)(b)                                      | D . Exonerated              |

### Case Summary

On May 9, 2014, § 87(2)(b) filed the following complaint in person at the CCRB.

On May 7, 2014, at approximately 1:40 a.m., § 87(2)(b) was stopped at the intersection of 4<sup>th</sup> Avenue and Bergen Street in Brooklyn by Sgt. Juan Montes, PO Angel Thevenin, and PO Richard Reilly of the 78<sup>th</sup> Precinct. He was eventually transported to the 78<sup>th</sup> Precinct stationhouse and issued summonses. The following allegations resulted:

- **Allegation A—Abuse of Authority: At 4<sup>th</sup> Avenue and Bergen Street in Brooklyn, PO Angel Thevenin frisked § 87(2)(b)**  
§ 87(2)(g) Therefore it is recommended that **Allegation A** be closed as **substantiated**.
- **Allegation B—Abuse of Authority: At 4<sup>th</sup> Avenue and Bergen Street in Brooklyn, Sgt. Juan Montes supervised the frisk of § 87(2)(b)**  
§ 87(2)(g) Therefore it is recommended that **Allegation B** be closed as **substantiated**.
- **Allegation C—Abuse of Authority: At the 78<sup>th</sup> Precinct stationhouse, Sgt. Juan Montes refused to provide his name and/or shield number to § 87(2)(b)**  
§ 87(2)(g) Therefore it is recommended that **Allegation C** be closed as **unsubstantiated**.
- **Allegation D—Abuse of Authority: At the 78<sup>th</sup> Precinct stationhouse, Sgt. Juan Montes strip-searched § 87(2)(b)**  
§ 87(2)(g) Therefore it is recommended that **Allegation D** be closed as **exonerated**.

The case was ineligible for mediation. § 87(2)(g)

### Results of Investigation

#### Civilian Statement:

**Complainant/Victim:** § 87(2)(b)

- § 87(2)(b) a black man, § 87(2)(b), with black hair and brown eyes, was § 87(2)(b) years old at the time of the incident. § 87(2)(b)

#### CCRB Statement

§ 87(2)(b) made a brief written statement on his walk-in form (encl. 3b-3c). He was interviewed at the CCRB on May 9, 2014 (encl. 5b-5c). § 87(2)(g)

On May 7, 2014, § 87(2)(b) went to a bar located at 82 4<sup>th</sup> Avenue in Brooklyn to watch a basketball game that was scheduled to start at 9:30 p.m. (The investigation determined that the date was May 6, 2014.) § 87(2)(b) left the bar two or three times during the game to smoke cigarettes. While outside the bar, § 87(2)(b) noticed a black unmarked Chevy Impala double-parked on the west side of 4<sup>th</sup> Avenue, approximately 4-5 car lengths north of the bar. The vehicle caught his attention because the occupants just sat inside and waited. He had no reason to believe that they saw him.

§ 87(2)(b) could not recall what time he left the bar, but knew that it was approximately ten minutes after the basketball game ended. He had three mixed drinks while in the bar but was not

intoxicated. He left alone and walked north on 4<sup>th</sup> Avenue toward Bergen Street. He had money, a phone, and keys in his pockets. He was not carrying any items that would have made a bulge in his clothing. His clothes were not loose or baggy. As he neared Bergen Street, the black Impala drove north on 4<sup>th</sup> Avenue, turned left onto Bergen Street, and cut him off as he reached the corner. § 87(2)(b) first stated that three officers exited the Impala. He described the first as a Hispanic man in his mid to late 30s who was 5'9" tall, chubby, and had black hair. The investigation identified him as Sgt. Juan Montes. He described the second officer as a white man in his 20s who was 5'7"-5'8" tall and thin. The investigation identified him as PO Richard Reilly. He described the third officer as a white man in his 20s who was 5'10" tall and thin. The investigation identified him as PO Angel Thevenin. § 87(2)(b) later stated that he could not recall if all three officers got out. § 87(2)(b) had seen the officers in his neighborhood but had never interacted with them.

§ 87(2)(b) thought that Sgt. Montes was in charge because he was directing the other officers. They stood in the crosswalk while § 87(2)(b) stood on the corner. He could not recall which officer spoke to him, but one asked for his identification and he provided it. Either PO Thevenin or PO Reilly said, "Let me search you." § 87(2)(b) first recounted that he responded, "For what?" § 87(2)(b) later insisted that he did not ask why they wanted to search, but then stated that he did probably say, "For what?" He also explained that while he said the officers asked if they could search him, they were not actually giving him an option to decline. He would have told them not to search him if given the choice, but Sgt. Montes was simply directing that he be searched. § 87(2)(b) never consented to any kind of search.

§ 87(2)(b) complied by standing next to the vehicle and placing his hands atop the roof. There were some passersby but no crowd formed. An officer approached to frisk him. § 87(2)(b) initially could not recall whether this was PO Reilly or PO Thevenin, but later insisted that it was PO Reilly. PO Reilly felt the outside of § 87(2)(b) clothing, starting on his upper body and working down. He moved his hands to § 87(2)(b) groin and began to grab his genitals. § 87(2)(b) pushed PO Reilly's hand away and asked what he was doing. PO Reilly said that he felt something. § 87(2)(b) first stated that another officer approached to frisk him again, but later stated that PO Reilly was the only officer who touched him on the street. PO Reilly frisked § 87(2)(b) again, and then began swiping his hand between § 87(2)(b) buttocks. § 87(2)(b) again pushed PO Reilly's hand away and asked what he was doing. Sgt. Montes said to handcuff § 87(2)(b) and PO Thevenin did so. During this time § 87(2)(b) was not raising his voice, but probably did use profanity. He could not recall what was said, but stated that he was arguing with the officers.

PO Thevenin placed § 87(2)(b) in the backseat of the Impala and sat beside him. PO Reilly drove and Sgt. Montes rode in the front passenger seat. § 87(2)(b) argued with the officers because they violated him. He probably called them all sorts of names, and the officers argued back. He could not recall with any greater detail what was said. After arriving at the stationhouse, § 87(2)(b) was brought to the front desk. A white male officer was working behind the desk. § 87(2)(b) continued to argue with the officers. § 87(2)(b) first stated that he asked all the officers for their shield numbers, but later stated that he specifically asked Sgt. Montes to show him his badge. Sgt. Montes did not respond and did not show his badge.

Sgt. Montes, PO Reilly, and PO Thevenin escorted § 87(2)(b) to the cells, which were empty. A new plainclothes officer accompanied them. § 87(2)(b) described him as a black man in his late 30s who was 5'7"-5'8" tall and had an average build. The investigation did not identify this officer. § 87(2)(b) stood outside the cells while PO Reilly frisked him again. PO Reilly again touched § 87(2)(b) genitals and this time § 87(2)(b) allowed him to do so. PO Reilly again said that he felt something. The officers instructed § 87(2)(b) to remove his shoes and he did so. They told him to take his clothes off and he asked why. They insisted that he strip and he refused. He

went back and forth with the officers for approximately 5-10 minutes. § 87(2)(b) was handcuffed again. He did not physically resist being handcuffed. All four officers grabbed § 87(2)(b) and pulled his handcuffed arms up. He was made to face a wall and his pants and underwear were pulled down. In his walk-in form, § 87(2)(b) wrote that the officers “jumped on him,” but he clarified that he simply meant that they grabbed him. § 87(2)(b) stated that in the course of this, there “might be a little resistance” on his part. He was made to squat and then the officers pulled his pants back up.

Sgt. Montes placed § 87(2)(b) in a cell. § 87(2)(b) was flipping out and calling the officers “all kinds of names.” Sgt. Montes returned with two summonses, one for § 87(2)(b) and one for § 87(2)(b). § 87(2)(b) did not know if Sgt. Montes wrote the summonses. § 87(2)(b) first stated that he did not spit at all during the incident, then said he could not recall but he doubted that he had. § 87(2)(b) suffered lower back pain from the incident because having his handcuffed arms pulled up behind him aggravated an old injury. He did not receive treatment for this § 87(2)(b)

### **NYPD Statements:**

#### **Subject Officer: SGT. JUAN MONTES**

- *Sgt. Montes, a Hispanic man, § 87(2)(b), with brown hair and brown eyes, was § 87(2)(b) years old at the time of the incident.*
- *On May 7, 2014, Sgt. Montes was an Anticrime Sergeant in the 78<sup>th</sup> Precinct. He was partnered with PO Reilly and PO Thevenin, and he worked from 5:10 p.m. on May 6, 2014, to 3:07 a.m. on May 7, 2014. He was dressed in plainclothes and worked in an unmarked black sedan.*

#### **Memo Book**

On May 7, 2014, at approximately 1:40 a.m., Sgt. Montes marked an arrest by PO Reilly of § 87(2)(b) for § 87(2)(b) at 4<sup>th</sup> Avenue and St. Marks Avenue in Brooklyn. They returned to the 78<sup>th</sup> Precinct stationhouse at 1:44 a.m. At 1:46 a.m., Sgt. Montes checked § 87(2)(b) warrant record and found I-card #§ 87(2)(b) which stated that § 87(2)(b) is to be considered armed and dangerous. § 87(2)(b) had been moving around during transport and was repeatedly told that his movements were furtive. Sgt. Montes approved a strip search. § 87(2)(b) continued to make furtive movements in the search area. The search had negative results and § 87(2)(b) was released with summonses at 2:45 a.m. (encl. 6b-6c).

#### **Command Log Entry**

Sgt. Montes made the following notation to the left of § 87(2)(b) arrest entry on the command log: “Strip search conducted due to defendant making furtive movements in RMP transport and I-Card #§ 87(2)(b) RMP 218 negative results on second search. Sgt. Montes approved of strip search at 1:55 a.m. Negative results” (encl. 6d-6e).

#### **CCRB Statement**

Sgt. Montes was interviewed at the CCRB on August 28, 2014 (encl. 6g-6i).

On May 7, 2014, at approximately 1:40 a.m., Sgt. Montes was on anticrime patrol with PO Reilly and PO Thevenin in the vicinity of 4<sup>th</sup> Avenue and St. Marks Avenue in Brooklyn. They sat in their parked vehicle. Sgt. Montes could not recall where the vehicle was parked. He thought it could have been on St. Marks Avenue or on 4<sup>th</sup> Avenue. He knew that the officers had been driving up and down 4<sup>th</sup> Avenue that night. PO Reilly sat in the driver seat, PO Thevenin was the front passenger, and Sgt. Montes sat in the backseat behind PO Reilly. Sgt. Montes observed a

man exit a bar on 4<sup>th</sup> Avenue. The investigation identified the man as § 87(2)(b) Sgt. Montes could not recall if the bar was north or south of St. Marks Avenue. Sgt. Montes had never seen § 87(2)(b) before and had not seen him earlier that night. Neither of Sgt. Montes' partners indicated that they had seen § 87(2)(b) before. Sgt. Montes could not recall how § 87(2)(b) was dressed. Sgt. Montes saw § 87(2)(b) spit multiple times on the sidewalk. Sgt. Montes could not recall how many times § 87(2)(b) spit but knew it was more than twice. Sgt. Montes could not recall where § 87(2)(b) was when he first spit and whether he was stationary or walking. He could not recall how far away from § 87(2)(b) he was, but knew that nothing obstructed his view. The officers discussed the observation and decided to stop § 87(2)(b) and issue him a summons on scene. Sgt. Montes did not see § 87(2)(b) commit any other violations or crimes and did not suspect him of anything else.

The officers stopped § 87(2)(b) somewhere around the intersection of 4<sup>th</sup> Avenue and St. Marks Avenue. Sgt. Montes could not recall the location of the stop with any greater specificity. All three officers exited the vehicle. Sgt. Montes could not recall if one officer specifically spoke to § 87(2)(b). They asked for his name and where he was coming from, and informed him that he was being stopped for spitting. § 87(2)(b) was immediately belligerent. He yelled and cursed at the officers. Sgt. Montes specifically recalled that he said, "Fuck you!" and "You fat piece of shit!" § 87(2)(b) smelled of alcohol and had red and watery eyes. He did not slur his speech. Sgt. Montes never asked if he was intoxicated. Sgt. Montes recalled that the officers asked § 87(2)(b) for identification, but could not recall whether he provided it. § 87(2)(b) yelling caught the attention of people on the street. A crowd began to gather which caused Sgt. Montes to feel unsafe. When asked where the crowd gathered, Sgt. Montes said, "In and around. I'm not sure exactly where. I see people stopping, coming out the bar, watching us, approaching, coming closer and closer, so I just said, listen let's get out of here." Sgt. Montes could not estimate how many people were in the crowd. When asked how close the crowd was to him, Sgt. Montes said, "Close enough for me to order my officers, to tell them, it's unsafe here, let's get out of here." Sgt. Montes could not recall how close the crowd was and could not recall if the crowd did anything else to cause him to fear for his safety. At this point, § 87(2)(b) was also guilty of disorderly conduct because he was cursing and caused a crowd to gather creating an unsafe scene. Sgt. Montes intended to transport § 87(2)(b) to the 78<sup>th</sup> Precinct stationhouse to issue him summonses there.

The officers did not run a warrant check for § 87(2)(b) on scene. They were on scene for a few minutes. When asked if § 87(2)(b) was ever frisked, Sgt. Montes said that he was but that he could not recall which officer frisked him. When asked why § 87(2)(b) was frisked, Sgt. Montes said, "In lieu of a C-summons. A C-summons in lieu of an arrest." Sgt. Montes' representative interjected and said, "Due to the fact that you're gonna transport him back inside the vehicle." Sgt. Montes explained, "It's policy for us, prior to us putting them inside the vehicle, we frisk all the time." Sgt. Montes confirmed that § 87(2)(b) was only frisked after he was handcuffed. This consisted of "a pat down to make sure he doesn't have any weapons available where he can grab." Sgt. Montes could not recall if he observed any bulges or potential weapons on § 87(2)(b) person prior to his being frisked. He could not recall if § 87(2)(b) ever pushed officers' hands away during the stop.

The officers placed § 87(2)(b) in the rear passenger seat and resumed their original seats. § 87(2)(b) was rear-cuffed. He slouched low in the seat and stuck his hands into his rear waistband. Sgt. Montes told him to stop moving and sit up. He pushed § 87(2)(b) forward to observe what he was doing with his handcuffs and saw that he was still handcuffed. Sgt. Montes let go of § 87(2)(b). § 87(2)(b) continued to reach his hands into his waistband. Sgt. Montes told him to stop moving and stop reaching into his pants multiple times. § 87(2)(b) movements indicated to Sgt. Montes that he might have a weapon or attempt to escape. After telling him to stop moving for a

third time, Sgt. Montes grabbed § 87(2)(b) left biceps and held onto him until they reached the stationhouse. Sgt. Montes later said that he may have told § 87(2)(b) to stop moving more than three times. He said to § 87(2)(b) “Listen, I’m gonna hold you because you keep moving and I told you repeatedly you’re still moving.” Sgt. Montes did not know if the other officers saw § 87(2)(b) moving. When asked if he ever saw § 87(2)(b) remove anything from his pants or hold anything in his hands, Sgt. Montes said, “The vehicle is dark at night and it’s hard to see clearly what he has back there.” When asked again, Sgt. Montes answered, “I wasn’t able to observe his hands clearly.”

§ 87(2)(b) continued to curse at the stationhouse. He also stated multiple times that he had a family member who worked at the CCRB and that he would get the officers back. Sgt. Montes intended to issue § 87(2)(b) summonses and release him. § 87(2)(b) was presented at the desk. Sgt. Assing was the desk officer, and PO Reilly and PO Thevenin were also at the desk. When asked if § 87(2)(b) asked for his shield number at the desk, Sgt. Montes explained that § 87(2)(b) repeatedly asked him for his information during the car ride and at the stationhouse, and that he provided his information multiple times. He said, “The whole time I told him. I told him who I was. I informed him ‘I’m Sgt. Montes 78<sup>th</sup> Precinct.’ I told him the whole time.” He never refused to provide his information to § 87(2)(b).

§ 87(2)(b) was searched at the front desk. Either PO Reilly or PO Thevenin removed everything from § 87(2)(b) pockets. As § 87(2)(b) stood at the desk, Sgt. Montes performed a warrant check and found that § 87(2)(b) had an I-card stating that he was under investigation for murder and that he was armed and dangerous. When Sgt. Montes was asked if he knew that § 87(2)(b) was under investigation for murder before running the warrant check, he replied, “I knew of him, but that’s it.” When asked to elaborate, he said, “We do daily checks on everything, every 61 that happens in the precinct.” Sgt. Montes further explained that, as a result of reviewing department paperwork, he had seen the name § 87(2)(b) as being involved in a murder investigation. However, he reiterated that he had never seen § 87(2)(b) before and did not recognize him on the street, and that he only connected him to the name after performing the warrant check.

Because of § 87(2)(b) movements in the vehicle during transport and the I-card stating he was armed and dangerous, Sgt. Montes felt unsafe for officers and the prisoners in the cells and decided to order a strip search. He made the decision and informed Sgt. Assing. When asked what he suspected § 87(2)(b) of possibly having concealed on his person, Sgt. Montes said, “He could have been armed and dangerous. Armed with anything.” He did not suspect § 87(2)(b) of having a specific kind of weapon and the I-card did not provide any further information regarding what kind of weapon § 87(2)(b) might have. Sgt. Montes, PO Reilly, and PO Thevenin took § 87(2)(b) to a private area in front of a bathroom that was out of public view. Sgt. Montes did not recall if any other officer was present at the time. He did not recall a black male officer in his late 30s who was 5’7”-5’8” tall and had an average build being present. The officers told § 87(2)(b) that he was being strip-searched. § 87(2)(b) cursed at them, refused to remove his clothing, and continuously backed away from the officers. Sgt. Montes described, “Every time we approached him, he kept backing away. I started thinking maybe he’s actually hiding something.” Sgt. Montes did not think § 87(2)(b) was handcuffed at this point. Sgt. Montes grabbed § 87(2)(b) arm but explained, “There was no need to grab him aggressively. He was being belligerent, but at the same time he wasn’t fighting.” Sgt. Montes grabbed him to control his arms, because at this point he did not know if § 87(2)(b) had a weapon. Sgt. Montes could not recall if any more officers grabbed § 87(2)(b). Officers did not push him into a wall to perform the search. They pulled his pants down and backed away to observe his body and the inner lining of his pants. Sgt. Montes could not recall if the officers pulled § 87(2)(b) underwear down, but also said they were able to visually inspect § 87(2)(b) bared body. He recalled that at some point § 87(2)(b)

took his pants off his legs and threw them. The search returned negative results and § 87(2)(b) was released with summonses for spitting and disorderly conduct.

**Subject Officer: PO ANGEL THEVENIN**

- *PO Thevenin, a Hispanic man, § 87(2)(b), with black hair and brown eyes, was § 87(2)(b) years old at the time of the incident.*
- *On May 7, 2014, PO Thevenin was assigned to Anticrime in the 78<sup>th</sup> Precinct. He was partnered with PO Reilly and Sgt. Montes and worked from 5:30 p.m. on May 6, 2014, to 2:05 a.m. on May 7, 2014. He was dressed in plainclothes and worked in an unmarked black Crown Victoria with number § 87(2)(b).*

**Memo Book**

On May 7, 2014, at approximately 1:40 a.m., PO Reilly arrested § 87(2)(b) for § 87(2)(b). § 87(2)(b) had an I-card. At 1:44 a.m., they arrived at the 78<sup>th</sup> Precinct stationhouse. At 1:46 a.m., PO Thevenin noted that § 87(2)(b) had no warrants, but did have I-card #§ 87(2)(b) which showed that § 87(2)(b) might be armed and dangerous. § 87(2)(b) was moving in his pants while rear cuffed in the vehicle. Sgt. Montes repeatedly told him to stop. Sgt. Montes approved a strip search due to § 87(2)(b) furtive movements in the vehicle. The search yielded negative results. At 2:45 a.m. PO Reilly issued two C-summonses to § 87(2)(b) (encl. 7b-7c).

**CCRB Statement**

PO Thevenin was interviewed at the CCRB on July 23, 2014 (encl. 7e-7f). § 87(2)(g)

PO Thevenin stated that the officers were parked on the east side of 4<sup>th</sup> Avenue, but could not recall if they were on the block south of Bergen Street or the block north of it. PO Thevenin looked across 4<sup>th</sup> Avenue and saw § 87(2)(b) leave a bar. PO Thevenin did not know the name of the bar but knew that it was farther from Bergen Street than from the other nearest cross street. It was the first time that PO Thevenin had seen § 87(2)(b) that night. PO Thevenin recognized § 87(2)(b) because he had seen him in photo arrays and had seen him on the street before, but PO Thevenin had never personally interacted with § 87(2)(b). PO Thevenin did not know if PO Reilly or Sgt. Montes had ever personally interacted with § 87(2)(b). PO Thevenin knew that § 87(2)(b) criminal history § 87(2)(b). He had been instructed to look out for § 87(2)(b) by the detective squad and by Sgt. Montes because § 87(2)(b) was a suspect in an ongoing homicide investigation. § 87(2)(b)

§ 87(2)(b) PO Thevenin did not know if § 87(2)(b) was suspected of committing the homicide.

§ 87(2)(b) exited the bar alone and walked toward Bergen Street. PO Thevenin could not recall how § 87(2)(b) was dressed. PO Thevenin observed him spit on the sidewalk approximately three times as he walked. PO Thevenin was not sure if he was the first officer to see § 87(2)(b) spit but all three officers saw it. The officers decided to stop § 87(2)(b). PO Thevenin said, "When we saw him spitting, we knew who he was, and we wanted to issue him a C-summons." The officers did not plan to do anything else other than issue § 87(2)(b) a summons for § 87(2)(b).

The officers drove onto Bergen Street and stopped § 87(2)(b) at the corner of Bergen Street and 4<sup>th</sup> Avenue. PO Thevenin exited the vehicle first and said, "Police, come here." § 87(2)(b) was immediately erratic and began yelling and cursing. He said, "What do you want? Leave me the hell alone." § 87(2)(b) attempted to continue walking past PO Thevenin so PO Thevenin stepped in front of him. PO Thevenin believed § 87(2)(b) was intoxicated because his eyes were

red, he slurred his speech, and he smelled of alcohol. PO Reilly and Sgt. Montes exited the vehicle. PO Thevenin tried to calm § 87(2)(b) for approximately 3-4 minutes. During this time § 87(2)(b) provided his identification to PO Thevenin. The officers did not perform a warrant check.

PO Thevenin also frisked § 87(2)(b). When asked why he frisked § 87(2)(b) PO Thevenin said, "For my safety." PO Thevenin feared for his safety because he knew § 87(2)(b) was involved in a homicide with a firearm. He did not have any other reason beyond that to believe that § 87(2)(b) had a weapon. He patted § 87(2)(b) waist and pockets. He attempted to pat § 87(2)(b) groin area but § 87(2)(b) tried to move away and bumped PO Thevenin. PO Thevenin tried again and § 87(2)(b) prevented him and said, "What are you doing?" PO Thevenin asked whether § 87(2)(b) had anything he was not supposed to have and § 87(2)(b) said, "Don't touch me." PO Thevenin did not frisk any other part of § 87(2)(b) body. When asked why he specifically frisked those areas, PO Thevenin said, "It was just frisking to make sure he didn't have anything as far as weapons and knives." No other officer ever frisked § 87(2)(b). PO Thevenin did not enter § 87(2)(b) pockets when frisking him. The officers searched his pockets after handcuffing him and found a Ziploc bag with a hole in it.

§ 87(2)(b) yelling and profanity caught the attention of pedestrians, but none stopped to watch and a crowd did not gather. In PO Thevenin's opinion, § 87(2)(b) actions constituted disorderly conduct. When asked which subsection of the disorderly conduct statute § 87(2)(b) had violated, PO Thevenin said, "I don't know the subsections. I know the different subsections but I don't know the exact subsection. Just the way he was acting, I knew it was disorderly."

During transport, PO Thevenin heard Sgt. Montes tell § 87(2)(b) to stop moving and ask, "What are you doing in your pants?" PO Thevenin turned around and saw § 87(2)(b) reaching into the rear of his waistband. Sgt. Montes told § 87(2)(b) to stop but § 87(2)(b) did not comply. Sgt. Montes instructed § 87(2)(b) to stop twice more. PO Thevenin could not recall if Sgt. Montes physically stopped § 87(2)(b) from reaching into his waistband. § 87(2)(b) was also moving around, as if he was "shielding himself away" from the officers.

PO Thevenin could not recall if § 87(2)(b) requested Sgt. Montes' shield number at the desk. § 87(2)(b) was frisked again when he was lodged in the cells.

§ 87(2)(b) was not handcuffed when he was led to the bathroom area for the strip search. He refused to comply. PO Thevenin approached him and he tried to shield himself away. § 87(2)(b) was not pushed against a wall during the strip search.

**Witness Officer: PO RICHARD REILLY**

- *PO Reilly, a white man, § 87(2)(b), with blond hair and blue eyes, was § 87(2)(b) old at the time of the incident.*
- *On May 7, 2014, PO Reilly was assigned to Anticrime in the 78<sup>th</sup> Precinct. He was partnered with Sgt. Montes and PO Thevenin and worked from 5:30 p.m. on May 6, 2014, to 3:05 a.m. on May 7, 2014. He was dressed in plainclothes and worked in an unmarked black Crown Victoria.*

**Memo Book**

On May 7, 2014, at approximately 1:40 a.m., PO Reilly arrested § 87(2)(b) at the intersection of 4<sup>th</sup> Avenue and St. Mark's Avenue in Brooklyn for § 87(2)(b). At 1:48 a.m., PO Reilly noted that § 87(2)(b) was moving inside the RMP, and that he had I-card #§ 87(2)(b) which stated that he may be armed and dangerous. Sgt. Montes ordered a strip search which had negative results. At 2:45 a.m., PO Reilly issued summonses to § 87(2)(b) for § 87(2)(b) (encl. 8b-8c).



### Summonses

§ 87(2)(b)

### CCRB Statement

PO Reilly was interviewed at the CCRB on August 6, 2014 (encl. 8i-8j). § 87(2)(g)

PO Reilly stated that they were parked on 4<sup>th</sup> Avenue near St. Marks Avenue in Brooklyn. He could not recall where exactly they were on 4<sup>th</sup> Avenue, but knew that they were on the east side and faced north toward Atlantic Avenue. He looked across 4<sup>th</sup> Avenue and saw § 87(2)(b) spit 3-4 times on the sidewalk as he walked north. PO Reilly recognized § 87(2)(b). He had never personally interacted with § 87(2)(b) but he knew him as a “known perp” who was involved in a murder. PO Reilly could not recall when exactly the murder occurred. § 87(2)(f), § 87(2)(e)

PO Reilly could not recall whether Sgt. Montes or PO Thevenin recognized § 87(2)(b)

PO Reilly’s intention upon stopping § 87(2)(b) was to issue him a summons for § 87(2)(b). He did not have any other intentions and did not suspect § 87(2)(b) of any other criminal activity. PO Reilly could not recall if he was the first officer to exit the vehicle and could not recall if he was the first officer to interact with § 87(2)(b). § 87(2)(b) was immediately “agitated and hostile.” He was “loud and vulgar and made derogatory comments” toward the officers. PO Reilly could not recall anything specific that § 87(2)(b) said. When asked if he believed that § 87(2)(b) was intoxicated, PO Reilly said, “I can’t tell you.” People started coming out of bars and businesses nearby to watch, and they gathered around the intersection. He could not estimate how many people were watching.

PO Reilly first could not recall whether § 87(2)(b) provided identification but then remembered that the officers did obtain identification from him. He did not run a warrant check on scene. PO Reilly recalled that § 87(2)(b) was frisked but could not recall who frisked him. He could not recall whether he frisked § 87(2)(b). PO Reilly also described § 87(2)(b) as physically hostile and recalled § 87(2)(b) pushing officers’ hands away. He could not recall when § 87(2)(b) did this or whether it was during the frisk. The officers did not search § 87(2)(b) pockets before placing him in their vehicle.

PO Reilly could not recall where the other officers sat during the ride, but knew that an officer was sat next to § 87(2)(b) in the backseat. § 87(2)(b) was “playing around with his waistband,” “moving around,” and “kind of swaying his body left and right.” He was also putting his hands into his waistband. PO Reilly saw § 87(2)(b) moving in his rearview mirror. PO Reilly could not recall how long § 87(2)(b) dug in his waistband or whether he did so for the entire ride, but knew that an officer instructed him multiple times to “stay still.” He could not recall whether the instructions came from Sgt. Montes or PO Thevenin. No officer ever physically stopped § 87(2)(b) from moving.

PO Reilly did not recall if § 87(2)(b) asked Sgt. Montes to show him his badge at the stationhouse. He never heard Sgt. Montes refuse to provide his shield number to § 87(2)(b). As per procedure, § 87(2)(b) was searched prior to being lodged in the cells. PO Reilly could not recall whether he performed this search.

§ 87(2)(b) refused to be strip-searched so officers handcuffed him, pulled down his pants and underwear, and had him squat and cough. Once § 87(2)(b) was handcuffed, the officers did not use any additional force to perform the search. They did not pull his arms up behind him and push him forward into a wall.

**Witness Officer: SGT. RICHARD ASSING**

- Sgt. Assing, a black man, § 87(2)(b), with black hair and brown eyes, was § 87(2)(b) years old at the time of the incident.
- On May 7, 2014, Sgt. Assing was the Desk Officer in the 78<sup>th</sup> Precinct stationhouse. He was dressed in uniform and worked from 11:05 p.m. on May 6, 2014, to 8:02 a.m. on May 7, 2014.

**Memo Book**

On May 6, 2014, Sgt. Assing made an entry indicating that he was the desk officer for his tour. His tour started on the night of May 6, 2014, and continued into the morning of May 7, 2014, so while he has an entry on May 7, 2014, stating that he was RDO, he worked at the desk at the time of the incident (encl. 9b).

**CCRB Statement**

Sgt. Assing was interviewed at the CCRB on September 8, 2014 (encl. 9d).

Sgt. Assing had no recollection of the incident. He did not recognize a photograph of § 87(2)(b). He viewed § 87(2)(b) arrest entry on the command log and confirmed that he made it, but explained that the writing to the left of the entry regarding a strip search was not his handwriting. He believed this writing would have been entered by Sgt. Montes. He did not recall ever discussing the possibility of a strip search with Sgt. Montes.

The investigator provided the additional details that § 87(2)(b) was strip-searched after a warrant check found that he had an I-card, that he may have been making furtive movements during transport to the stationhouse, and that he was eventually released with summonses for spitting and disorderly conduct. These details did not refresh Sgt. Assing's recollection. The area in which strip searches are conducted is not in view of the desk. He had no recollection of participating in a strip search.

**NYPD Documents**

**I-Card #§ 87(2)(b)**

The I-card was issued for § 87(2)(b) on § 87(2)(b), by Det. Andrew Suarez of the 78<sup>th</sup> Precinct detective squad for the charge of § 87(2)(b). It states that § 87(2)(b) is a suspect only and there is no probable cause for an arrest. It advises that he should be considered armed and dangerous (encl. 10a).

**Summons/Arrest for Incident and Disposition**

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

**Status of Civil Proceedings**

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of September 16, 2014, with regard to the incident (encl. 14).

### Civilians Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]  
[REDACTED]

### Civilians CCRB History

- [§ 87(2)(b)] has filed the following CCRB complaints (encl. 2):

- [§ 87(2)(b)]  
[REDACTED]  
[REDACTED]  
[REDACTED]

### Subject Officers CCRB History

- PO Angel Thevenin has been a member of the service for 4 years and there are no substantiated CCRB allegations against him. This is his first CCRB complaint (encl. 1a).
- Sgt. Juan Montes has been a member of the service for 8 years and there are no substantiated CCRB allegations against him (encl. 1b).

### Conclusion

#### Allegations Not Pleaded

[§ 87(2)(g)]  
[REDACTED]  
[REDACTED]  
[REDACTED]

[§ 87(2)(g)]  
[REDACTED]  
[REDACTED]  
[REDACTED]

### Identification of Subject Officers

Sgt. Montes, PO Reilly, and PO Thevenin admitted stopping [§ 87(2)(b)] PO Thevenin admitted frisking him, and Sgt. Montes admitted authorizing a strip search.

### Investigative Findings and Recommendations

- **Allegation A—Abuse of Authority: At 4<sup>th</sup> Avenue and Bergen Street in Brooklyn, PO Angel Thevenin frisked [§ 87(2)(b)]**

[§ 87(2)(b)] alleged that he stood with his hands on top of the roof of the officers' vehicle and an officer frisked him. He first could not recall whether it was PO Reilly or PO Thevenin, but later insisted that it was PO Reilly. PO Reilly patted [§ 87(2)(b)] whole body before moving to his groin and grabbing his genitals. [§ 87(2)(b)] pushed PO Reilly's hand away and asked what he was doing. PO Reilly said that he felt something. [§ 87(2)(b)] first stated that another officer approached to frisk him again, but later stated that PO Reilly was the only officer who touched him on the street. PO Reilly frisked [§ 87(2)(b)] again, and then began swiping his hand between [§ 87(2)(b)] buttocks. [§ 87(2)(b)] again pushed PO Reilly's hand away and asked what he was doing.

PO Thevenin admitted to frisking [§ 87(2)(b)] before he was handcuffed and before the determination was made to transport him to the 78<sup>th</sup> Precinct stationhouse. PO Thevenin stated he was the only officer to frisk [§ 87(2)(b)]. He patted [§ 87(2)(b)] waist and pockets. He attempted to

pat § 87(2)(b) groin area but § 87(2)(b) tried to move away and bumped PO Thevenin. PO Thevenin tried again and § 87(2)(b) prevented him again. PO Thevenin did not frisk any other part of § 87(2)(b) body. PO Thevenin recognized § 87(2)(b) from seeing him in photo arrays and on the street, and knew that his criminal history § 87(2)(b). He had been informed by Sgt. Montes and the detective squad that § 87(2)(b) was a suspect in an ongoing investigation regarding a homicide with a firearm during a home invasion, which occurred at § 87(2)(b). PO Thevenin frisked § 87(2)(b) because he feared for his safety, owing to § 87(2)(b) involvement in a homicide with a firearm. When asked why he specifically frisked § 87(2)(b) waist and pockets, he said, “It was just frisking to make sure he didn’t have anything as far as weapons and knives.” PO Thevenin admitted that he did not have any other reason beyond his knowledge of § 87(2)(b) involvement in a homicide to believe that § 87(2)(b) had a weapon during the incident.

Sgt. Montes recalled that § 87(2)(b) was frisked but could not recall which officer frisked him. He stated that § 87(2)(b) was only frisked after he was handcuffed, and he was frisked because he was going to be placed in the police vehicle. He could not recall if he observed any bulges or potential weapons on § 87(2)(b) person prior to his being frisked. He could not recall if § 87(2)(b) ever pushed officers’ hands away during the street encounter.

PO Reilly recalled that § 87(2)(b) was frisked but could not recall who frisked him or if he frisked him. He also recalled § 87(2)(b) pushing officers’ hands away, but could not recall when specifically this occurred or if it was during the frisk.

A frisk is permissible only if an officer possesses reasonable suspicion that an individual is armed and dangerous. Arizona v. Johnson, 555 U.S. 323 (2009) (encl. 0a-0e).

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be closed as **substantiated**.

- **Allegation B—Abuse of Authority: At 4<sup>th</sup> Avenue and Bergen Street in Brooklyn, Sgt. Juan Montes supervised the frisk of § 87(2)(b)**

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation B** be closed as **substantiated**.

- **Allegation C—Abuse of Authority: At the 78<sup>th</sup> Precinct stationhouse, Sgt. Juan Montes refused to provide his name and/or shield number to § 87(2)(b)**

§ 87(2)(b) first alleged that, when he was presented at the desk, he asked all the officers for their shield numbers, but later stated that he specifically asked Sgt. Montes to show him his badge. Sgt. Montes did not respond and did not show his badge.

Sgt. Montes stated that PO Reilly, PO Thevenin, and Sgt. Assing were present when § 87(2)(b) was brought to the desk. He recalled that § 87(2)(b) repeatedly asked him for his information during the car ride and at the stationhouse, and that he provided his information multiple times. He said, “The whole time I told him, I told him who I was, I informed him I’m Sgt. Montes 78<sup>th</sup> Precinct, I told him the whole time.” Sgt. Montes never refused to provide his

information to § 87(2)(b)

PO Thevenin could not recall if § 87(2)(b) requested Sgt. Montes' shield number at the desk. PO Reilly did not recall if § 87(2)(b) asked Sgt. Montes to show him his badge at the stationhouse. He never heard Sgt. Montes refuse to provide his shield number to § 87(2)(b) Sgt. Assing had no recollection of the incident.

§ 87(2)(g)

Therefore it is recommended that **Allegation C** be closed as **unsubstantiated**.

- **Allegation D—Abuse of Authority: At the 78<sup>th</sup> Precinct stationhouse, Sgt. Juan Montes strip-searched § 87(2)(b)**

It is undisputed that Sgt. Montes authorized a strip search of § 87(2)(b)

Sgt. Montes recounted that he sat on § 87(2)(b) left in the backseat of the vehicle. § 87(2)(b) slouched low in the seat and stuck his hands into his rear waistband. Sgt. Montes told him to stop moving and sit up. He pushed § 87(2)(b) forward to observe what he was doing with his handcuffs and saw that he was still handcuffed. Sgt. Montes let go and § 87(2)(b) continued to reach his hands into his waistband. Sgt. Montes told him to stop moving and reaching into his pants multiple times. § 87(2)(b) movements indicated to Sgt. Montes that he had a weapon or that he was trying to escape. After telling § 87(2)(b) to stop moving for a third time, Sgt. Montes grabbed his left biceps and held onto him until they reached the stationhouse. He did not know if his partners saw § 87(2)(b) moving. He was not able to observe § 87(2)(b) hands clearly and could not see if he removed anything from his pants or held anything in his hands.

Once at the stationhouse, Sgt. Montes intended to issue § 87(2)(b) summonses and release him. Either PO Reilly or PO Thevenin searched him at the desk by removing all objects from his pockets. Sgt. Montes ran a warrant check and found that § 87(2)(b) had an I-card stating that he was under investigation for murder and that he was armed and dangerous. Sgt. Montes explained that, as a result of reviewing department paperwork, he had seen the name § 87(2)(b) as being involved in a murder investigation. However, he reiterated that he had never seen § 87(2)(b) before and did not recognize him on the street, and that he only connected the name to him after performing the warrant check.

Sgt. Montes authorized a strip search of § 87(2)(b) based upon his movements in the vehicle and the I-card stating he was armed and dangerous. He did not suspect § 87(2)(b) of having a specific kind of weapon. § 87(2)(b) refused to be strip-searched. He cursed at the officers and backed away from them, leading Sgt. Montes to think, "Maybe he's actually hiding something." Sgt. Montes did not think § 87(2)(b) was handcuffed at this point. He grabbed § 87(2)(b) to control his arms because he did not know if § 87(2)(b) had a weapon, but stated that while § 87(2)(b) was belligerent, he was not fighting.

PO Thevenin and PO Reilly corroborated that § 87(2)(b) reached into his waistband and moved around during transport. PO Thevenin confirmed that Sgt. Montes instructed § 87(2)(b) to stop moving multiple times, while PO Reilly knew that an officer did so but could not recall who. PO Reilly denied that any officer physically stopped § 87(2)(b) from moving, while PO Thevenin could not recall if Sgt. Montes did so. Both officers confirmed that § 87(2)(b) was not initially handcuffed at the outset of the strip search, and that he was handcuffed after refusing to comply.

According to Patrol Guide Procedure 208-05, a strip search may only be conducted when the arresting officer reasonably suspects that weapons, contraband, or evidence may be concealed upon the person or in the clothing in such a manner that they may not be discovered by previous search methods. A supervisor will authorize a strip search only when an arresting officer has

§ 87(2)(g)

§ 87(2)(g)